

## **TENTATIVE RULINGS**

### **DEPT CX102**

**Judge Layne H. Melzer**

**Court Reporters:** Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the court's policy on the use of privately retained court reporters which can be found on the court's website at [Court Reporter Services | Superior Court of California | County of Orange](#).

**Tentative rulings:** The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

**Submitting on tentative rulings:** If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5302. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

**Non-appearances:** If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4<sup>th</sup> 436, 442, fn. 1.)

**APPEARANCES:** Department CX102 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75, California Rule of Court (CRC) 3.672 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at [Civil Remote Hearings | Superior Court of California | County of Orange](#) prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available on the website. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") contained on the Court's website will be strictly enforced. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

**PUBLIC ACCESS:** The courtroom remains open for all evidentiary and non-evidentiary proceedings.

**No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.**

## TENTATIVE RULINGS

9/11/2026

10:00 AM

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| 100 | <b>Balt USA, LLC vs.<br/>Treadstone Medical<br/>LLC</b><br><br><b>2021-01237081</b> | <b>Motion for Protective Order</b><br><br>Defendant Sonorous Neurovascular, Inc. ("Sonorous") moves (1) to strike the references to the BosCath, Titan, and Ballast products in Plaintiff Balt USA, LLC's ("Balt") Amended Identification of Trade Secrets under Code of Civil Procedure section 2019.210 (the "Amended Identification") as exceeding the operative Fourth Amended Complaint ("FAC") as to Sonorous, and (2) for a protective order barring trade-secret discovery as to Sonorous on ten categories of alleged trade secrets and on the 272 documents (approximately 4,000 pages) incorporated by reference through the Ballast, Titan, and LEO categories.<br><br>The <b>motion to strike is DENIED</b> , and the <b>motion for a protective order is GRANTED IN PART and DENIED IN PART</b> , as set forth below.<br><br>I. LEGAL STANDARD<br><br>Before commencing discovery relating to a trade secret, "the party alleging misappropriation shall identify the trade secret with reasonable particularity." Cal. Code Civ. Proc. § 2019.210. The standard is a modest, discovery-gating one. "Reasonable particularity" "does not mean that the party alleging misappropriation has to define every minute detail of its claimed trade secret at the outset"; the designation is liberally construed and reasonable doubts about its sufficiency are resolved in favor of allowing discovery to proceed. <i>Brescia v. Angelin</i> , 172 Cal. App. 4th 133, 145, 149 (2009). Section 2019.210 "does not create a procedural device to litigate the ultimate merits of the case," and at the pre-discovery stage the claimant is "not required to convince defendants or the court . . . that its alleged trade secrets are not generally known to the public." <i>Id.</i> at 149; <i>Perlan Therapeutics, Inc. v. Superior Court</i> , 178 Cal. App. 4th 1333, 1350–1351 (2009).<br><br>The statute nonetheless requires the claimant to draw usable boundaries. A plaintiff may not include broad "catch-all" language or "hide its trade secrets in 'plain sight' by including surplusage and voluminous attachments in its trade secret statement." <i>Perlan</i> , 178 Cal. App. 4th at 1349–1350. Where a "detailed description alone" is inadequate to let the defendant learn the secret's boundaries — particularly in a specialized technical field — the court "may require an explanation of how the alleged trade secret differs from matters known to skilled persons in the field." <i>Brescia</i> , 172 Cal. App. 4th at 150. The enforcement mechanism, however, is the Court's discovery power. A section 2019.210 designation "is not itself a pleading but it functions like one . . . because it limits the scope of discovery in much the same way as the allegations of a complaint limit discovery in |
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other types of civil actions." *Advanced Modular Sputtering, Inc. v. Superior Court*, 132 Cal. App. 4th 826, 835 (2005).

II. THE MOTION TO STRIKE IS DENIED

The motion to strike is **DENIED** on two independent grounds.

**First, the vehicle does not fit.** A section 2019.210 designation is not a pleading; it functions like one only in that it limits the scope of discovery. *Advanced Modular*, 132 Cal. App. 4th at 835. The remedy for a designation that reaches beyond the pleaded claim is a protective order confining or staying discovery — not an order striking allegations. *See Perlan*, 178 Cal. App. 4th at 1352–1353. The relief Sonorous actually needs — confinement of discovery to the pleaded theory — is available without striking anything and is granted below.

**Second, the challenged references are defensibly tethered to the pleaded theory.** The FAC alleges that Sonorous used Balt's information to create a knockoff and "improved version" of the LEO stent for its BosStent (FAC ¶ 141) and alleges more broadly that Sonorous and others used "Balt's confidential technical and design files for Balt products" (FAC ¶ 139). This Court's July 30, 2026 order granting leave to amend recognized that the BosStent "is a 'venous system' that 'includes a delivery catheter that would benefit from Balt's trade secrets related to Balt catheter products, like the Ballast or Titan.'" The BosCath is Balt's designation for that delivery catheter, and the Titan and Ballast files are the Balt catheter trade secrets the Court already tied to the pleaded system.

On this record, these references are the catheter component of the already-pleaded BosStent theory, not a new, unpleaded claim. Sonorous's authorities concerning evidence on wholly unpleaded theories do not compel a different result where the Court has already recognized the connection. Reasonable doubts on this scope question are resolved in favor of allowing discovery to proceed. *Brescia*, 172 Cal. App. 4th at 149.

Accordingly, in lieu of striking, the Court confirms that Sonorous-related trade-secret discovery is **confined to the pleaded LEO/BosStent venous-system misappropriation theory, including the BosStent's delivery catheter (BosCath) and the Balt catheter files (Titan and Ballast) that Balt contends were used to develop it.** Any category or document untethered to that theory as to Sonorous is outside the permissible scope.

IV. THE MOTION FOR A PROTECTIVE ORDER IS GRANTED IN PART

**A. Public-domain / lack-of-secrecy — DENIED.** Sonorous's contention that the categories are not, in fact, secret is a merits question the statute does not resolve at the pre-discovery stage, and Sonorous concedes the point is "for another day." *Perlan*, 178 Cal. App. 4th at 1350. Relief on this basis is denied.

**B. LEO category and discretely identified stolen documents — DENIED.** The LEO identification is concrete, and identification by reference to specific, discrete Bates-numbered stolen documents is adequate on these facts, particularly given Balt's expert declaration and the liberal, pro-discovery construction of the standard. *See Advanced Modular*, 132 Cal. App. 4th at 836–837 (where credible experts declare they can understand the designation and distinguish the alleged secrets from what is known, the designation should generally be considered adequate to permit discovery). The Eder declaration is sufficient to defeat an outright bar, but it does not itself cure the deficiencies identified below; an expert declaration that merely lists purported trade secrets and labels them "reasonably particular" and "novel" is entitled to limited weight. *Perlan*, 178 Cal. App. 4th at 1351–1352.

**C. Generic categories and wholesale document incorporation — GRANTED to the limited extent of requiring cure.** With the exception of the LEO category, the enumerated categories describe types of documents rather than the trade secrets within them, and the "Documents Related to Titan" and "Documents Related to Ballast" entries incorporate entire master files without pinpointing where the claimed secret lies. That approach shifts to Sonorous the burden of combing thousands of pages and does not satisfy reasonable particularity. *Brescia*, 172 Cal. App. 4th at 150; *Perlan*, 178 Cal. App. 4th at 1349–1350, 1352. The remedy is a targeted order to amend, with a limited stay — not preclusion. *Perlan*, 178 Cal. App. 4th at 1350–1351.

**D. Non-public certification — GRANTED to the limited extent of requiring compliance.** The Court previously directed Balt to confirm that each category is limited to non-public information. Balt provided that confirmation only for the LEO category. Balt shall comply as to the remaining Sonorous-related categories. This is a compliance requirement, not a merits adjudication.

IT IS HEREBY ORDERED:

1. Sonorous's **motion to strike is DENIED.** In lieu of striking, Sonorous-related trade-secret discovery is **confined** to the pleaded LEO/BosStent venous-system misappropriation theory, including the BosStent's delivery catheter (BosCath) and the Balt catheter files (Titan and Ballast) Balt contends were used to develop it.

2. Sonorous's **motion for a protective order is GRANTED IN PART.** Trade-secret discovery directed to Sonorous is **STAYED** as to the categories addressed in paragraph 3, except the LEO-stent category, which the Court finds adequately identified and as to which discovery may proceed.

3. **By no later than September 14**, Balt shall serve a Further Amended section 2019.210 Identification as to Sonorous that: (a) identifies, for each category other than LEO, the specific trade secret(s) claimed rather than the category of documents; (b) specifies, by pinpoint reference (page, section, or drawing), the portions of the incorporated documents —

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|                                                                                                        |                                                                           | <p>including the Titan and Ballast master files — that embody each claimed trade secret; and (c) confirms, for each Sonorous-related category, that it is limited to non-public information, consistent with the LEO entry.</p> <p>4. The <b>stay in paragraph 2 shall dissolve</b> as to any category upon the Court's determination, on ex parte application or at the <b>upcoming IDC scheduled for September 18, 2026 at 10AM</b>, that the Further Amended Identification satisfies this Order as to that category. <b>The parties shall provide the Court with a joint IDC statement stating their respective positions on the adequacy of the Further Amended Identification by no later than 10AM on September 17.</b></p> <p>5. Sonorous's request to bar trade-secret discovery as to Sonorous outright, and its request for relief on public-domain grounds, are otherwise <b>DENIED.</b></p> <p>6. Plaintiff Balt shall provide notice.</p> |
| <p style="text-align: center;"><b>TENTATIVE RULINGS</b><br/> <b>9/17/2026</b><br/> <b>02:00 PM</b></p> |                                                                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>101</b>                                                                                             | <p><b>Fields vs. Irvine Eurocars, LLC</b></p> <p><b>2023-01319978</b></p> | Final Accounting                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |

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| <b>102</b> | <b>Vargas vs. Blue Line Foodservice Distribution, Inc.</b><br><br><b>2023-01328202</b> | <b>Final Accounting</b>                                                |
| <b>103</b> | <b>Maldonado vs. Fast Auto Loans, Inc.</b><br><br><b>2019-01073154</b>                 | <b>1. Motion to Appear Pro Hac Vice</b><br><b>2. Status Conference</b> |
| <b>104</b> | <b>Kroening vs. Denny's Corporation</b><br><br><b>2026-01553742</b>                    | <b>Demurrer to Complaint</b>                                           |

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| <b>105</b> | <b>Southern California Edison Company vs. California State Board of Equalization</b><br><br><b>2025-01534286</b> | <b>Motion for Leave to Intervene</b> |
| <b>106</b> | <b>Alarcon vs. Akash Management LLC</b><br><br><b>2024-01378974</b>                                              | <b>Case Management Conference</b>    |
| <b>107</b> | <b>Alarcon vs. Akash Management LLC</b><br><br><b>2023-01365842</b>                                              | <b>Case Management Conference</b>    |

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| <b>108</b> | <b>Mihailovic vs. Between<br/>The Sheets, Inc.</b><br><br><b>2024-01439140</b> | <b>Motion for Final Approval</b>               |
| <b>109</b> | <b>Simma vs. Biosense<br/>Webster, Inc.</b><br><br><b>2023-01342539</b>        | <b>Motion for Final Approval</b>               |
| <b>110</b> | <b>Lopez vs. CH Robinson<br/>Company, Inc.</b><br><br><b>2022-01259258</b>     | <b>Motion for Approval of Class Settlement</b> |



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| <b>112</b> | <b>Jamal vs. DB Global, Inc.</b><br><br><b>2024-01396853</b>                  | <b>Motion for Approval of Class Settlement</b> |
| <b>113</b> | <b>Smith vs. North American Video Corporation</b><br><br><b>2022-01277227</b> | <b>Motion for Approval of Class Settlement</b> |
| <b>114</b> | <b>Mical vs. Prime Healthcare La Palma, LLC</b><br><br><b>2022-01292457</b>   | <b>Case Management Conference</b>              |

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| <b>115</b> | <b>Barnuevo vs. Prime<br/>Healthcare La Palma,<br/>LLC</b><br><br><b>2021-01223132</b> | <b>Motion to Approve a PAGA Settlement</b>          |
| <b>116</b> | <b>2025-01480077</b>                                                                   | <b>Motion for Approval of Settlement Under PAGA</b> |
|            |                                                                                        |                                                     |